

3. Subject to the provisions of section two of the Indian High Courts Act, 1861, as amended by this Act, regulating the number and qualifications of judges, it shall be lawful for the Governor-General in Council to appoint from time to time persons to act as additional judges of any High Court for such period not exceeding two years as may be required, and the judges so appointed shall, whilst so acting, have all the powers of a judge of the High Court appointed by His Majesty under section two of the said Act: Provided that such additional judges shall not be taken into account in determining the proportions specified in the proviso to that section.

Power to
appoint
temporary
judges.

4. The salaries of any judges or temporary judges appointed under this Act shall be paid out of the Revenues of India.

Salaries.

5. This Act may be cited as the Indian High Courts Act, 1911, and shall be construed as one with the Indian High Courts Act, 1861, and that Act and the Indian High Courts Act, 1865, and this Act, may be cited together as the Indian High Courts Acts, 1861 to 1911.

Short title.

28 & 29 Vict.
c. 15.

CHAPTER 19.

An Act to amend the Law relating to Labourers in Ireland. [18th August 1911.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

1.—(1) The Bank of Ireland shall, upon the order of the Lord Chancellor, out of the fund of suitors in the Supreme Court, pay to the Local Government Board for Ireland for the purposes of the Labourers Acts the sum of thirty-six thousand pounds.

Application of
dormant por-
tion of Irish
Suitors' Fund
to the pur-
poses of the
Labourers
Acts.

(2) The Accountant General of the Supreme Court of Judicature in Ireland shall, upon the order of the Lord Chancellor, out of the new Two-and-a-half per cent. consolidated stock forming portion of the fund of suitors in the Supreme Court and standing to the credit of the general ledger account kept by him for dormant balances and the unclaimed order and residue account, Land Judge's Court, transfer to the Local Government Board for the purposes aforesaid stock to the nominal value of thirty thousand pounds.

(3) The Local Government Board may sell the stock transferred to them under this section at such time or times and in such manner as they think fit, and may invest the proceeds, together with the sum of thirty-six thousand pounds payable to them under this section, in any securities in which they are authorised to invest money by subsection (2) of section thirteen of the Labourers (Ireland) Act, 1906, as amended by this Act, 6 Edw. 7. c. 37.

and the annual income of those investments, together with any dividends on the stock so transferred to them, shall be added to and form portion of the Labourers' Cottages Fund established under section thirteen of that Act, and shall be applied as part of that fund accordingly.

(4) If it happens that the moneys or securities standing to the credit of the account of the suitors in the Supreme Court are at any time reduced to a sum not sufficient to meet the demands upon them or either of them, then the Treasury, so as to afford a complete indemnity to the suitors for any loss which they might sustain by reason of the passing of this Act, shall advance out of the Consolidated Fund or the growing produce thereof such sum as they may think necessary, not exceeding in the whole the sum of thirty-six thousand pounds and the amount which would be realised at the date of such demands as aforesaid by the sale of the stock transferred under this section, together with the dividends that would have accrued thereon if such stock had not been so transferred.

(5) Nothing in this section affects any indemnity provided with respect to the fund of suitors in the Supreme Court by any Act passed prior to the passing of this Act.

Amendment of
6 Edw. 7. c. 37.
ss. 16 and 17.

2. In section sixteen of the Labourers (Ireland) Act, 1906, five million two hundred and fifty thousand pounds shall be substituted for four million two hundred and fifty thousand pounds as the limit of the amount of advances which may be made by the Irish Land Commission on the recommendation of the Local Government Board under that section: Provided that, if in any financial year the Labourers' Cottages Fund is not sufficient to pay the amount payable out of that fund in that year in pursuance of subsection (1) of section seventeen of the Labourers (Ireland) Act, 1906, the deficiency shall be apportioned rateably between the purchase annuities payable in respect of advances made by the Land Commission after the date of the passing of this Act, other than advances certified by the Local Government Board to be advances which would have been recommended and might have been made although the said limit had not been extended, and the amount of the deficiency apportioned to each annuity shall be paid as part of that annuity by the rural district council to whom the advance has been made.

Amendment of
6 Edw. 7. c. 37.
s. 14, and
9 Edw. 7. c. 42.
s. 11.

3. In section fourteen of the Labourers (Ireland) Act, 1906, which relates to payments out of the Ireland Development Grant, and section eleven of the Irish Land Act, 1909, which relates to the repayment of advances under the first-mentioned Act, the words "thirty-four thousand five hundred pounds" shall be substituted for the words "twenty-eight thousand pounds."

Extension of
the Local
Government
Board's powers
of investment.

4. The powers of investment given to the Local Government Board by subsection (2) of section thirteen of the Labourers (Ireland) Act, 1906, shall include a power to invest any money from time to time requiring investment for the purposes of the

Labourers' Cottages Fund in any manner in which trustees are authorised by section thirty-eight of the Irish Land Act, 1909, to invest money without the sanction of the Public Trustee. 9 Edw. 7. c. 42.

5.—(1) Where it appears to the Local Government Board, on the report of an inspector made under section seventeen of the Labourers (Ireland) Act, 1885, that any house occupied as a dwelling-house by a labourer is unfit for human habitation, the Board may, at any time, if they are satisfied that suitable house accommodation has been obtained or is obtainable by that labourer elsewhere, direct the council of the rural district in which the house is situated to serve forthwith upon the owner of the house a notice requiring him to demolish the house within such time as may be specified by the Board for that purpose, and it shall be the duty of the council to serve such notice as so directed. Demolition of dwelling-houses unfit for human habitation. 48 & 49 Vict. c. 77.

(2) If the house is not demolished within the time specified in the notice, it shall be the duty of the council, and they are hereby empowered, to demolish the house forthwith.

(3) Any expenses reasonably incurred by the council in demolishing the house may be recovered by them from the owner as a civil debt in manner provided by the Summary Jurisdiction Acts.

(4) Where it appears to the Local Government Board that the council have failed to perform any of the duties imposed upon them by this section, the Board may, by order, appoint a paid officer to perform those duties, who for that purpose shall have such powers as may be specified in the order.

(5) The remuneration and expenses of any such officer shall be fixed by the Local Government Board, and shall be paid by the council, and may be recovered by such officer from the council as a civil debt in the manner provided by the Summary Jurisdiction Acts.

(6) The provisions of sections two hundred and sixty-six and two hundred and sixty-seven of the Public Health (Ireland) Act, 1878, as amended by any subsequent enactment, shall apply to notices under this section. 41 & 42 Vict. c. 52.

(7) A notice shall not be served under section seventeen of the Labourers (Ireland) Act, 1885, with respect to any house with respect to which a notice is directed to be served under this section.

6.—(1) In any case where the purchase money or compensation payable by a district council in respect of any land or in respect of any estate or interest in land required by them for the purposes of any of the Labourers Acts is payable into court under the Lands Clauses Acts, as amended by the Second Schedule to the Housing of the Working Classes Act, 1890, the council, if that purchase money or compensation does not exceed one hundred pounds, may pay the same into the county court and that court shall thereupon have with respect thereto all the jurisdiction exercisable by the High Court under the Payment of purchase money and compensation into the county court. 53 & 54 Vict. c. 70.

Lands Clauses Acts, and the council shall thereupon have with respect to the land, estate, or interest all the like rights and powers as if the purchase money or compensation had been paid into the High Court.

(2) Rules of the county court shall regulate the practice and procedure under this section, and the provisions of subsection (12) of section eleven of the Labourers (Ireland) Act, 1906, with respect to county court rules under that section shall apply to the rules to be made under this section.

(3) In subsection (8) of the said section eleven the words "and exceeds ten pounds" are hereby repealed.

Evidence of
orders of
Local Govern-
ment Board
inspectors.
6 Edw. 7. c. 37.

7. A document purporting to be an order made by an inspector of the Local Government Board under section six of the Labourers (Ireland) Act, 1906, and to be signed by him, or purporting to be a copy of such an order and to be certified as such a copy by the secretary or assistant secretary of the Board, shall be admissible in evidence in any court or before any person having by law or consent of parties power to receive evidence.

Interpretation.

8. In this Act, unless the context otherwise requires,—

The expression "Labourers Acts" means the Labourers (Ireland) Acts, 1883 to 1906, and this Act;

The expression "fund of suitors in the Supreme Court" has the same meaning as in the Four Courts Library Act, 1894.

57 & 58 Vict.
c. 4.

Construction
and citation.

9. This Act shall be construed as one with the Labourers (Ireland) Acts, 1883 to 1906, and may be cited with those Acts.

Short title.

10. This Act may be cited as the Labourers (Ireland) Act, 1911.

CHAPTER 20.

An Act to make such amendments in the Law as are necessary to enable certain reserved provisions of the Second Geneva Convention to be carried into effect.

[18th August 1911.]

WHEREAS His Majesty has ratified, with certain reservations, the Convention for the amelioration of the condition of the wounded and sick of armies in the field, drawn up in Geneva in the year one thousand nine hundred and six, and it is desirable, in order that those reservations may be withdrawn, that such amendments should be made in the law as are in this Act contained :

Be it therefore enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :